

25STCV33863 25STCV33863

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-25

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Case Number: 25STCV33863 Hearing Date: August 25, 2026 Dept: 617

Dept.

617

Date:

8-25-26

Case

#: 25STCV33863

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Volkswagen Group of America, Inc. and Rusnak/Pasadena Audi

RESPONDING

PARTY: Unopposed/Plaintiff, Vasken Darian

RELIEF

REQUESTED

Demurrer

to Third, Fifth, and Sixth Causes of Action in Complaint

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Vasken Darian sued Defendant Volkswagen Group of America, Inc. alleging Volkswagen failed to promptly replace his 2023 Audi Q5 or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also alleges Volkswagen fraudulently induced the sale of the car by concealing the existence of a transmission defect. Plaintiff additionally brings a negligent repair claim against Defendant Rusnak/Pasadena Audi.

RULING: Off Calendar.

Defendants demur to the third, fifth, and sixth causes of action in Plaintiff's complaint for violation of Civil Code section 1793.2, subd. (a)(3), negligent repair, and fraudulent inducement. On August 12, 2026, Plaintiff filed a First Amended Complaint. The demurrer is therefore moot and taken off calendar. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477.)

Defendants to give notice.